

ALIBABA GROUP HOLDING LIMITED
SECOND AMENDED AND RESTATED 2014 POST-IPO EQUITY INCENTIVE PLAN
NOTICE OF RESTRICTED SHARE UNIT GRANT

Capitalized terms used but not otherwise defined in this Notice of Restricted Share Unit Grant (the “Notice of Grant”) shall have the respective meanings ascribed to them in the Alibaba Group Holding Limited Second Amended and Restated 2014 Post-IPO Equity Incentive Plan (as it may be amended or amended and restated from time to time, the “Plan”) and the Restricted Share Unit Award Agreement to which this Notice of Grant relates (the “Award Agreement”). This Notice of Grant shall form a part of, and be deemed incorporated into, the Award Agreement.

Name of Participant:杜岩松

Staff Number:419238

We are pleased to inform you that Alibaba Group Holding Limited (the “Company”) has decided to grant you the number of Restricted Share Units (“RSUs”) set forth below, each of which RSUs covers **8** ordinary shares of the Company (each, a “Share”, and collectively, the “Shares”), pursuant to the Plan, as follows:

Grant Number:24-R15126

Total Number of RSUs Granted:600

Grant Date:2024-05-20

Vesting Commencement Date:2024-04-01

First Vesting Date:2024-07-01

Par Value Per Share:US\$0.000003125

Vesting Schedule

Subject to Sections 2(b), 2(c) and 5 of the Award Agreement, so long as you have remained a Service Provider since the Grant Date, 6.25% of the RSUs shall vest on each three-month anniversary of the Vesting Commencement Date, such that one-hundred percent (100%) of the RSUs will be vested on the fourth anniversary of the Vesting Commencement Date.

Term and Expiration

In no event shall the Shares subject to the RSUs be delivered after six (6) years from the Grant Date set forth above.

By signing below (or clicking the “Accept” button), you represent that you have read this Notice of Grant, the Award Agreement and the Plan and agree to the terms and conditions set forth herein and therein effective as of the Grant Date; and you agree that you accept as binding, conclusive and final all decisions, determinations and interpretations of the Administrator with respect to any matter arising under this Notice of Grant, the Award Agreement and the Plan.

This Notice of Grant, the Award Agreement and the Plan are prepared in English. To the extent that this Notice of Grant, the Award Agreement and the Plan are translated from English into another language, and in the event of any discrepancy between the English and other language versions of this Notice of Grant, the Award Agreement and the Plan, the English version shall always prevail.

Sections 8 and 19(3) of the Electronic Transactions Law (2003 Revision) of the Cayman Islands shall not apply to this Award Agreement.

PARTICIPANT
杜岩松(419238)
Signature 杜岩松

ALIBABA GROUP HOLDING LIMITED
By: Joseph C. Tsai
Name: Joseph C. Tsai
Title: Chairman

ALIBABA GROUP HOLDING LIMITED
SECOND AMENDED AND RESTATED 2014 POST-IPO EQUITY INCENTIVE PLAN
RESTRICTED SHARE UNIT AWARD AGREEMENT

This Restricted Share Unit Award Agreement (this “Award Agreement”) sets forth the terms and conditions of the restricted share units (each a “RSU”, and collectively, “RSUs”) granted to you by Alibaba Group Holding Limited (the “Company”), with each RSU covering such number of ordinary shares of the Company (each a “Share”, and collectively, the “Shares”) as is set forth in the above Notice of Restricted Share Unit Grant (the “Notice of Grant”), pursuant to the Alibaba Group Holding Limited Second Amended and Restated 2014 Post-IPO Equity Incentive Plan (as it may be amended or amended and restated from time to time, the “Plan”), which is incorporated herein by reference. Capitalized terms used but not otherwise defined herein shall have the respective meanings ascribed to them in the Plan. In the event of any conflict between the terms and conditions of the Plan and this Award Agreement, the terms and conditions of the Plan shall prevail.

1. Right to Receive Shares

- (a) Subject to the terms of the Notice of Grant, this Award Agreement and the Plan, each RSU gives you the right to receive:
- (i) the number of Shares underlying the RSU following the applicable vesting date pursuant to the Notice of Grant; or
 - (ii) if so determined by the Administrator in its sole discretion, payment in cash or other property equal to the Fair Market Value of the number of Shares underlying the RSU in lieu of such Shares; provided, that payment in cash or other property in lieu of the Shares shall not be made earlier than the time such Shares are issuable pursuant to the terms of this Award Agreement.
- (b) You shall not by reason of being granted the Award be deemed to be a Shareholder or to have any other rights to the Shares underlying the RSUs unless and until such Shares are actually issued to you in accordance with the terms of the Notice of Grant, this Award Agreement and the Plan. Accordingly, no right as a Shareholder shall exist with respect to the Shares underlying the RSUs prior to such Shares being actually issued to you (as evidenced by the appropriate entry on the register of members of the Company or upon the records of a duly authorized transfer agent of the Company).

2. Vesting

- (a) Subject to Sections 2(b), 2(c) and 5 below, the relevant portion of the RSUs shall vest if you are a Service Provider on the relevant vesting dates as set forth in the Notice of Grant; provided, that you have remained a Service Provider since the Grant Date.
- (b) If, during your employment or service with a Group Member, you are suspended from work pending investigation based on the Group’s reasonable belief that you have engaged in misconduct under Applicable Law or Group policy, then, regardless of whether you receive compensation during the period of suspension, to the maximum extent permitted under Code Section 409A (if applicable), the Administrator shall have the discretion to postpone the vesting of any unvested RSUs by up to the entire period of such suspension.
- (c) If you shall take any leave (whether due to sickness or any other personal reason), other than any annual leave pursuant to which you are entitled to continue to receive payment of your full base salary for the entire period of such leave permitted under Applicable Law or under your employment or service agreement with a Group Member of which you are a Service Provider, for a duration equal to or longer than forty-five (45) calendar days cumulatively during each of the three-month periods commencing from the Vesting Commencement Date, (each as may be

extended pursuant to Sections 2(b) or 2(c)), then, to the maximum extent permitted under Code Section 409A (if applicable), the Administrator shall have the discretion to postpone the vesting of any unvested RSUs by the number of calendar days equal to:

- (i) the number of calendar days of such leave taken by you during each of the relevant aforesaid periods; or
 - (ii) such shorter period as the Administrator may in its absolute discretion consider appropriate having regard to the relevant circumstances.
- (d) For the avoidance of doubt, in the event that the vesting of the relevant RSUs is postponed in accordance with Sections 2(b) or 2(c), the relevant vesting date shall be deemed to be the date immediately after the end of such postponement or any other date as the Administrator reasonably determines.

3. Payment of Tax

- (a) By accepting this Award Agreement, you agree that, if the Company determines that it or any other Group Member may be obligated under Applicable Law to withhold any Taxes on your behalf in connection with the vesting of the RSUs or the sale of the underlying Shares, then the Company may in its sole discretion require you to pay Taxes in any one or several of the following ways:
- (i) by payment in full to an account designated by the Company of an amount equal to the aggregate amount of Taxes, payable in cash (by check or wire transfer) within the period as specified by the Company from time to time;
 - (ii) by withholding or repurchase by the Company or any other Group Member from you the number of Shares otherwise deliverable upon vesting of the RSUs having a Fair Market Value on the date such Shares are granted, vested, withheld or repurchased, or such other date as the Administrator deems appropriate or as required under Applicable Law equal to the aggregate amount of Taxes payable (the “Tax Equivalent Shares”) without any compensation whatsoever to you;
 - (iii) by applying, or procuring the Group Member of which you are a Service Provider (the “Tax Withholding Group Member”) to apply, such amount of your salary and/or termination payment and/or any other payment from the Tax Withholding Group Member that is equal to the Taxes payable by you toward payment of such Taxes, if permitted by Applicable Law; and/or
 - (iv) by directing the broker to sell a number of Tax Equivalent Shares deposited in your brokerage account and to remit the proceeds of such sale in an amount equal to the sum of the Taxes payable by you to the Company or to the Tax Withholding Group Member, as applicable, plus any brokerage fees that may be charged by the broker.
- (b) The Company shall be entitled to demand payment (and withhold from salary or other compensation payable) of additional Taxes or to withhold or repurchase additional Tax Equivalent Shares if so required by subsequent amendments to Applicable Law and/or as requested by the relevant tax authorities. Subject to Applicable Law, the Company in its sole discretion shall be entitled to demand payment and withhold from salary or other compensation or to withhold or repurchase additional Tax Equivalent Shares for any penalties and/or interest charged by any tax authority for late payment of any Taxes.

4. Issuance of Shares

- (a) Subject to subsection (b) of this Section 4 below, upon your payment in full of the following within the period as specified by the Company from time to time:

- (i) the Taxes (as may be reduced upon application of Section 3(a)(ii), (iii) or (iv) above); and
- (ii) other regulatory or third party levies, fees or charges payable in connection with the vesting of the RSUs and the issuance of the Shares as may be determined by the Administrator in its discretion from time to time,

the Company will, within a reasonable period of time following the date on which the RSU vests, allot and cause the Shares underlying such RSU (as may be reduced upon application of Section 3 (a) above) to be issued in your name on the Company's register of members as fully paid; provided, that, the Company may, in the sole discretion of the Administrator, arrange for the settlement of such RSUs by issuing a depositary share or such number of depositary shares (each, a "Depositary Share") representing the number of Shares subject to such RSUs, instead of issuing the Shares underlying such RSUs, or arrange for the subsequent conversion of the Shares underlying such RSUs into Depositary Shares. If so settled or converted, the Company will deposit the Depositary Shares with a banking institution selected by the Company, which will act as the depositary for the Depositary Shares. For the avoidance of doubt, without limitation, each Share delivered via the Central Clearing and Settlement System ("CCASS") to a CCASS participant (either an investor participant or a broker participant), or an American Depositary Share of the Company, shall be a Depositary Share. For the avoidance of doubt, the Company may in its sole discretion direct any such Shares or Depositary Shares be delivered to you from a trust or other entity that the Company may establish to act as a holding vehicle for Shares, in lieu of being issued by the Company. Further, the terms and conditions of this Agreement shall apply to such Depositary Shares issued in lieu of Shares to the same extent as they apply to Shares, except as otherwise provided herein. References to Shares in this Agreement shall include both Shares and Depositary Shares issued in lieu of Shares as described above, except as otherwise provided herein.

- (b) The Company may, in the sole discretion of the Administrator, settle in cash or other property having a fair market value (determined in good faith by the Board) equal to that Fair Market Value of the Shares that would otherwise be issued in settlement of the RSUs that vested (less the aggregate purchase price for such Shares, if applicable, and any applicable Taxes, costs and charges).
- (c) Notwithstanding anything herein to the contrary, the Company may postpone the issuance of the Shares (or the application of shareholder rights following the vesting of RSUs) or payment in cash or other property in lieu of such Shares until it is satisfied that the issuance of such Shares (or the application of shareholder rights) or payment in lieu of such Shares will not violate any Applicable Law.
- (d) To the extent necessary to comply with Code Section 409A, in all events the Shares shall be issued or payment in cash or other property in lieu of such Shares shall be made, as applicable, no later than March 15 of the calendar year that follows the calendar year in which the applicable vesting date set forth in the Notice of Grant occurs.
- (e) The actual issuance of the Shares underlying the RSUs (or such Depositary Shares that may be issued) shall be subject to the terms and conditions as the Company may establish from time to time in order to comply with Applicable Law.
- (f) The terms in this Section 4 are subject to Sections 5(b)-(f) of this Award Agreement, including but not limited to the *ab initio* void nature of any Award thereunder. The parties further agree that nothing in this Section 4 shall have or be deemed to have any impact on the *ab initio* void nature pursuant to Section 5 of this Award Agreement of any Award.

5. Termination

- (a) Unless otherwise agreed by the Administrator, if your status as a Service Provider terminates, any RSUs that are not vested shall be *ab initio* void and your right to receive the Shares underlying such RSUs shall end on the date of the termination of your status as a Service Provider. The

Administrator shall be entitled to determine (in accordance with this Award Agreement and any applicable human resources policy as may be adopted by the Company and/or a Group Member from time to time), whether your transfer to another Subsidiary or a Related Entity constitutes a termination of your status as a Service Provider.

(b) If:

- (i) you are Terminated for Cause at any time;
- (ii) you commit a Competitive Offence during the term of your service as a Service Provider or within twenty-four (24) months of termination of your status as a Service Provider;
- (iii) you breach any non-competition, non-solicitation or other restrictive covenant to which you are subject with respect to any Group Member (the occurrence of which breach shall be determined in accordance with the governing law and, unless the Company determines otherwise in its sole discretion, the dispute resolution provisions that are set forth in, or are otherwise applicable under, the agreement in which the applicable restrictive covenant is set forth);
- (iv) you commit an act or omission constituting Cause during the term of your service as a Service Provider; or
- (v) after termination of your status as a Service Provider, you commit any Specified Tortious Conduct;

then, subject to Applicable Laws, all of the RSUs, whether vested or unvested, are *ab initio* void and you acknowledge and agree that the grant of RSUs was not made to you in the first place.

(c) For purposes of Section 5(b), "Competitive Offence" means, in each case as determined by the Administrator:

- (i) you directly or indirectly, establish, incorporate, form, enter into, or participate in the Business as an owner, partner, principal or shareholder or other proprietor (other than through a purchase on the open market, solely as a passive investment, of not more than five percent (5%) of the interest) of any Competitor, or are taking any actions to do or prepare to do the aforesaid;
- (ii) you have become, are or become an officer, director, employee, consultant, adviser of, or otherwise, directly or indirectly, enter the employ of, continue any employment with or render any services to or for, any Competitor, or are taking any actions to do or prepare to do the aforesaid; or
- (iii) you knowingly perform or have performed any act that may confer a competitive benefit or advantage upon any Competitor.

(d) Upon (A) your Termination for Cause, (B) your first commission of a Competitive Offence, (C) your first breach of any non-competition, non-solicitation or other restrictive covenant to which you are subject with respect to any Group Member, (D) your first commission of an act or omission constituting Cause, or (E) your first commission of any Specified Tortious Conduct, then, subject to Applicable Laws, considering that all of the RSUs, whether vested or unvested, are *ab initio* void, you are to forthwith return (i) all Shares you received in settlement of such void RSUs, (ii) all cash, or other property that you received in settlement of such void RSUs, and/or (iii) any proceeds, gains and/or economic benefits you realized in connection with the sale, transfer or other disposition of the Shares or other property received in settlement of such void RSUs ((ii) and (iii) collectively the "Share Equivalent"), and the Company shall have the right to take all actions to effect the return from you of all such Shares and/or Share Equivalent. For the avoidance of doubt, in the event that you have sold, assigned, transferred or otherwise disposed of the Shares or other property received in settlement of such void RSUs, the Company shall have

the right to effect the aforesaid return in the form of the Share Equivalent. For clarity, any Taxes or charges paid by you pursuant to Section 3(a)(ii) and (iv) of this Award Agreement shall be deemed as part of the Share Equivalent for purposes of this Section 5. You agree to submit to the good faith calculation of the Company the number of Shares under subsection (d)(i) and the value of the Share Equivalent under subsections (d)(ii) and (iii) based on information available to the Company from the Company's designated securities broker, and in the event and/or to the extent that the Company is unable to obtain such information, you agree that you have the burden of proving the number of Shares under subsection (d)(i) and the value of the Share Equivalent under subsections (d)(ii) and (iii) and that you have the obligation to provide to the Company any and all information related to the Shares and Share Equivalent, including but not limited to information regarding the balance of Shares in all relevant accounts of yours or accounts in your control and all records of trading in Shares performed by you or on your behalf. In the event that the number of Shares that is or may be still within your possession, custody or control (the "Remaining Shares") is impossible or impractical to ascertain by either you, or by the Company (as reasonably determined by the Administrator), such Remaining Shares shall be deemed to have been disposed of and the Fair Market Value of the Shares, as of the date on which the Company first gives notice to you of its intention to enforce this provision, shall be used to determine the value of such Remaining Shares and accordingly the amount that you should return to the Company in lieu of such Remaining Shares. In the event that the value of the Share Equivalent is impossible or impractical to ascertain by either you, or the Company (as reasonably determined by the Administrator), the Fair Market Value of the Shares corresponding to the Share Equivalent, as of the date on which the Company first gives notice to you of its intention to enforce this provision, shall be used to determine such value and accordingly the amount that you should return to the Company as Share Equivalent.

- (e) For the avoidance of doubt, if any of your RSUs are *ab initio* void and/or you return any Shares underlying the RSUs and/or any Share Equivalent, neither the Company nor any Group Member shall have any obligation whatsoever to refund any Taxes or charge paid by you in connection with (i) the grant or vesting of the RSUs, (ii) the issuance or delivery of the Shares underlying the RSUs or payment in lieu of the Shares, or (iii) the sale or transfer of the Shares underlying the RSUs. You agree to make any and all efforts to timely seek the refund to you of any Taxes or charge paid by you in connection with (i)-(iii) of this Section 5(e) from any relevant tax and/or government authority. You further agree that you shall apply, without undue delay, any such refund received by you to carry out your obligations of returning any Shares underlying the RSUs and/or any Share Equivalent pursuant to this Section 5.
- (f) For the avoidance of doubt, the Company may direct that you return any Shares you are required to return pursuant to this Section 5 to a trust or other entity that the Company may establish to act as a holding vehicle for Shares, in which case you will be required to return such Shares to such holding vehicle.

6. No Issuance of RSU Certificate

No certificate(s) will be issued in respect of the RSUs awarded under this Award Agreement. The RSUs awarded under this Award Agreement shall be in book-entry form.

7. Refusal to Transfer

The Company shall not be required to treat as owner of any Shares or to accord the right to vote or pay dividends to any purchaser or other transferee to whom Shares shall have been transferred in violation of this Award Agreement. The Company shall also not be required to issue or transfer any Shares to the extent it believes such issuance or transfer would violate any Applicable Law.

8. Lock-Up

You hereby agree that, if so requested by the Company or any representative(s) of the underwriters (the "Managing Underwriter") in connection with a public offering of any securities of the Company, you shall not sell or otherwise transfer any Shares or other securities of the Company during the one hundred and

eighty day (180-day) period (or such other period as may be requested in writing by the Managing Underwriter and agreed to in writing by the Company) (the “Market Standoff Period”) following the effective date of a registration statement or similar document filed by the Company in connection with such public offering. The Company may impose stop-transfer instructions with respect to securities subject to the foregoing restrictions until the end of such Market Standoff Period.

9. Limit on Transfers

- (a) RSUs may not be offered, sold, assigned, transferred, pledged, hypothecated or otherwise disposed of, except as:
 - (i) permitted in subsection (b) below; or
 - (ii) designated by you by will or by the laws of descent and distribution.
- (b) Notwithstanding the foregoing, the Administrator may in its sole discretion, permit the RSUs to be transferred:
 - (i) for no consideration to or for the benefit of your Family Members,
 - (ii) pursuant to domestic relations order in the settlement of marital property rights, subject to such limits as the Administrator may establish, and the transferee(s) shall remain subject to all terms and conditions applicable to this Award Agreement, or
 - (iii) under other circumstances as the Administrator deems appropriate.

10. No Guarantee of Continued Service

YOU SPECIFICALLY ACKNOWLEDGE AND AGREE THAT THE VESTING OF RSUs PURSUANT TO THE VESTING SCHEDULE IN THE NOTICE OF GRANT IS EARNED ONLY BY CONTINUING AS A SERVICE PROVIDER AT THE WILL OF THE COMPANY OR ANY OTHER GROUP MEMBER (NOT THROUGH THE ACT OF BEING HIRED, BEING GRANTED THIS AWARD OR ACQUIRING SHARES HEREUNDER). YOU FURTHER ACKNOWLEDGE AND AGREE THAT THIS AWARD AGREEMENT, THE TRANSACTIONS CONTEMPLATED HEREBY AND THE VESTING SCHEDULE SET FORTH IN THE NOTICE OF GRANT DO NOT CONSTITUTE AN EXPRESS OR IMPLIED PROMISE OF YOUR CONTINUED ENGAGEMENT AS A SERVICE PROVIDER FOR THE VESTING PERIOD, FOR ANY PERIOD, OR AT ALL, AND SHALL NOT INTERFERE IN ANY WAY WITH YOUR RIGHT OR THE RIGHT OF THE COMPANY OR ANY OTHER GROUP MEMBER TO TERMINATE THE RELATIONSHIP BETWEEN THE COMPANY OR ANY OTHER GROUP MEMBER, ON ONE HAND, AND YOU AS A SERVICE PROVIDER, ON THE OTHER HAND, AT ANY TIME, WITH OR WITHOUT CAUSE.

11. Tax Consequences

YOU UNDERSTAND THAT THE GRANT, VESTING AND SETTLEMENT OF RSUs GRANTED HEREUNDER AND THE SALE OR TRANSFER OF SHARES OBTAINED THROUGH THE VESTING AND SETTLEMENT OF RSUs GRANTED HEREUNDER MAY HAVE TAX IMPLICATIONS THAT COULD RESULT IN ADVERSE TAX CONSEQUENCES TO YOU. YOU REPRESENT THAT YOU HAVE CONSULTED WITH, OR WILL CONSULT WITH, YOUR TAX ADVISOR AND YOU FURTHER ACKNOWLEDGE THAT YOU ARE NOT RELYING ON THE COMPANY FOR ANY TAX, FINANCIAL OR LEGAL ADVICE.

12. Notices

Notices required hereunder shall be given in person or by registered mail, courier, facsimile or e-mail to your address or facsimile number shown in the records of the Company (or where the notice is given by e-mail, by sending it to the e-mail address provided by you), and to the Company’s address set forth below or such other address provided by the Company to you:

Alibaba Group Holding Limited
c/o Alibaba Group Services Limited
26/F, Tower One, Times Square
1 Matheson Street
Causeway Bay, Hong Kong
Attention: Company Secretary

All notices required to be given under this Agreement shall be deemed to have been given and received (a) when personally delivered, or delivered by same-day courier; or (b) on the third business day after mailing by registered mail, postage prepaid, return receipt requested; or (c) upon delivery when sent by prepaid overnight express delivery service (e.g., FedEx, UPS); or (d) when sent by e-mail or facsimile (with a customary confirmation of transmission).

13. Heirs and Successors

This Award Agreement shall be binding upon, and inure to the benefit of, the Company and its successors and assigns, and upon any person acquiring, whether by merger, consolidation, purchase of assets or otherwise, all or substantially all of the Company's assets and business. Any benefits payable to you under this Award Agreement that are not paid at the time of your death shall be paid to the beneficiary or beneficiaries as you may designate in writing with the Administrator in such form and at such time as the Administrator shall require. If you fail to designate a beneficiary, or if your designated beneficiary dies before you or before complete payment of the amounts distributable under this Award Agreement, the Administrator shall, in its discretion, direct that amounts to be paid under this Award Agreement be paid to:

- (i) one or more of your relatives by blood, adoption or marriage and in such proportion as the Administrator determines, or
- (ii) the legal representative or representatives of the estate of the last to die of you and your beneficiary.

14. Confidentiality

You agree that you shall, and shall cause any and all transferee(s) of the RSUs and/or the Shares underlying the RSUs and your personal representative to, keep the Notice of Grant, the Award Agreement and the Plan, and the transactions contemplated hereby and thereby, confidential, and shall not disclose to any Person, or provide access to any Person to, such information, without the written consent of the Company, unless you are required to disclose such information pursuant to Applicable Law; provided, that, within a reasonable time before such disclosure, you shall consult with the Company and use your best efforts to ensure that confidential treatment will be accorded to such information. The confidentiality obligation shall remain in force and effect after you and the transferee(s) (if any) of the RSUs and/or the Shares underlying the RSUs and your personal representative no longer hold any RSUs or Shares.

15. Amendment

This Award Agreement may be amended by the Company at any time by written notice to you of such amendment, except that where any amendment shall be adverse to your interest (as determined by the Administrator), this Award Agreement may only be amended by written agreement signed by the Company and you.

16. Compliance with Laws; Severability

The granting and vesting of the RSUs under this Award Agreement and the issuance of the Shares (or Depositary Shares) and the payment of money or other property under this Award Agreement are subject to compliance with all Applicable Laws, and to such approvals by any listing, regulatory or governmental authority as may, in the opinion of counsel for the Company, be necessary or advisable in connection therewith. Any securities issued under this Award Agreement shall be subject to such restrictions, and

the person acquiring such securities shall, if requested by the Company, provide such assurances and representations to the Company as the Company may deem necessary or desirable to ensure compliance with all Applicable Laws. To the extent permitted by Applicable Law, this Award Agreement and the RSUs granted or awarded hereunder shall be deemed amended to the extent necessary to conform to such legal requirements.

Any word, phrase, clause, sentence or other provision herein which violates or is prohibited by any Applicable Law, court decree or public policy shall be modified as necessary to avoid the violation or prohibition and so as to make this Award Agreement enforceable as fully as possible under Applicable Law, and if such cannot be so modified, the same shall be ineffective to the extent of such violation or prohibition without invalidating or affecting the remaining provisions herein.

17. Transfer of Personal Data

- (a) By participating in the Plan, you are hereby given notice of the applicable data privacy rules and policies adopted by the Company from time to time (the “Data Privacy Policy”), which sets out how your personal data will be used and shared by the Company and other Group Members. The Data Privacy Policy does not form part of this Award Agreement and may be updated from time to time.
- (b) To the extent necessary, you authorize, agree and unambiguously consent to the transmission by the Company or any other Group Member of any of your personal data related to the Award for legitimate business purposes (including, without limitation, the administration of the Plan). You confirm and acknowledge that you give this authorization and consent freely.

18. Governing Law

This Award Agreement shall be governed by the laws of the Cayman Islands, except as otherwise provided herein.

19. Dispute Resolution; Legal Fees and Costs

- (a) Save as provided for in Section 19(i) below, any and all disputes, controversies or claims arising out of, relating to or in connection with the Plan, this Award Agreement and all prior award agreements under this Plan and Prior Plans, including, without limitation, any such dispute, controversy or claim: (i) regarding the Plan’s, this Award Agreement’s, and/or any prior award agreement’s existence, enforceability, arbitrability, validity or termination, or any performance or breach thereof; or (ii) with or against any present or former officer, director, employee, shareholder or agent of any Group Member, shall be referred to and exclusively and finally resolved by binding arbitration under the applicable rules specified in this Section 19. Notwithstanding the foregoing, nothing in this Section 19 will prevent any Group Member or you from applying to a court of competent jurisdiction to seek to enjoin preliminarily or permanently any breach or threatened breach of any restrictive covenants to which you are a party with any Group Member.
- (b) The arbitration will be conducted according to the following rules depending upon your location of employment or service in your most recent employment or service agreement with the applicable Group Member or, if following termination, your location of employment or service in your last employment or service agreement with the applicable Group Member (the “Location”), except to the extent modified by Section 19(i):
 - (i) if such Location is in the United States, the rules of the American Arbitration Association (“AAA”) governing commercial arbitration in effect at the time of the arbitration;
 - (ii) if such Location is in the United Kingdom, the London Court of International Arbitration Rules (the LCIA Rules) which Rules are deemed to be incorporated by reference into this Section 19; or

(iii) if such Location is in Hong Kong, Singapore, Taiwan, India or the People's Republic of China (the "PRC") or other jurisdictions (except for the United States and the United Kingdom), the Hong Kong International Arbitration Centre Administered Arbitration Rules (the "HKIAC Rules") in force when the Notice of Arbitration is submitted in accordance with the HKIAC Rules.

- (c) The number of arbitrator(s) shall be one (1). The arbitration shall be held at (i) if the Location is in the United States, the AAA arbitration center that is in, or nearest to, the county where the Location is; (ii) if the Location is in the United Kingdom, the London Court of International Arbitration ("LCIA") arbitration center that is in, or nearest to, the city where the Location is; or (iii) if the Location is in Hong Kong, Singapore, Taiwan, India, the PRC or other jurisdictions (except for the United States and the United Kingdom), the Hong Kong International Arbitration Centre ("HKIAC") in Hong Kong.
- (d) The language to be used in the arbitral proceedings shall be English, except as otherwise provided in Section 19(i).
- (e) The arbitrator (and if the Company exercises its discretion under Section 19(i) below to bring proceedings in court, the court) shall apply the substantive law (and the law of remedies, if applicable) of the Cayman Islands without giving effect to the principles of conflicts of law, and will be without power to apply any different substantive law, except that the arbitrator, and the court if applicable, shall apply other substantive laws, procedural rules, and/or dispute resolution provisions as set forth in this Agreement and/or the Plan. The parties waive, to the fullest extent permitted by law, any rights to appeal, or to review of, any arbitrator's award by any court. **YOU AND THE COMPANY EACH IRREVOCABLY WAIVE ANY RIGHT TO A TRIAL BY JURY IN CONNECTION WITH ANY ACTION BROUGHT PURSUANT TO THIS SECTION 19.**
- (f) You and the Company agree to maintain confidentiality as to all aspects of the arbitration, except as may be required by Applicable Law, regulations or court order, or to maintain or satisfy any suitability requirements for any license by any state, federal or other regulatory authority or body, including, without limitation, professional societies and organizations; provided, that, nothing herein shall prevent you or the Company from disclosing information regarding the arbitration (i) for purposes of confirming, vacating or enforcing the award; (ii) for purposes solely related to preparing for and conducting the arbitration; and (iii) in confidence to attorneys and other professional advisors on a need-to-know basis. You and the Company further agree to obtain the arbitrator's agreement to preserve the confidentiality of the arbitration.
- (g) To the extent permitted by law, all disputes, controversies, or claims covered by this Section 19 (each a "Covered Claim") must be brought in the parties' individual capacity, and not as a plaintiff or class member in any purported class or collective proceeding. All Covered Claims will be decided on an individual basis in arbitration pursuant to this arbitration provision (subject to the Company's discretion to bring proceedings in court under Section 19(i) below). The parties expressly waive any right with respect to any Covered Claims to submit, initiate, or participate as a plaintiff, claimant or member in a class action or collective action, regardless of whether the action is filed in arbitration or in court. Furthermore, if a court orders that a class or collective action should proceed, in no event will such class or collective action proceed in the arbitration forum. Covered Claims may not be joined or consolidated in arbitration with disputes brought by other individual(s), unless agreed to in writing by all parties (or if the Company exercises its discretion under Section 19(i) below to bring proceedings in court, Covered Claims may not be joined or consolidated in court proceedings with disputes brought by other individual(s) unless agreed to in writing by all parties and permitted by the court, or if ordered by the court). Notwithstanding any other provisions, any issue concerning the validity of this class or collective action waiver must be decided by a court and an arbitrator shall not have authority to consider the issue of the validity of this waiver. If, for any reason, this class or collective action waiver is found to be unenforceable, the class or collective action claim may only be heard in court. The arbitrator shall not have authority to hear or decide class or collective actions, or any

representative actions on behalf of other Participants in the Plan. No arbitration award or decision will have any preclusive effect as to issues or claims in any dispute with anyone who is not a named party to the arbitration.

(h) This Section 19 has been freely negotiated between you and the Company and is mutually entered into by the parties. Each party fully understands and agrees that they are giving up certain rights otherwise afforded to them by civil court actions, including but not limited to the right to a jury trial, to the maximum extent allowed by law. **SUBJECT TO THE COMPANY'S DISCRETION TO BRING PROCEEDINGS IN COURT UNDER SECTION 19(i) BELOW, EACH OF THE PARTIES HEREBY WAIVES, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE RIGHT TO SUE IN COURT, AS WELL AS ALL RIGHTS TO A TRIAL BY JURY, WITH RESPECT TO THE SUBJECT MATTER SET FORTH IN THIS SECTION 19.** You and the Company each understand and agree that if any term or portion of this Section 19 or Section 5 shall, for any reason, be declared by a court of competent jurisdiction to be invalid or unenforceable or to be contrary to public policy or any law, then the remaining terms and portions of Section 19 or Section 5, as applicable, shall continue in full force and effect, as if the invalid or unenforceable term or portion thereof had not existed within this Agreement, and this Section 19 or Section 5, as applicable, may be modified to the extent necessary to make it enforceable, consistent with its fundamental purpose and intent. Further, any such decision with respect to the invalidity or unenforceability of any term or portion of this Section 19 or Section 5 shall only be binding in the proceeding in which the decision was made.

(i) Notwithstanding Sections 19(a) to (h) above, the Company (but not you) retains the sole discretion to commence proceedings in respect of any and all disputes, controversies or claims covered by Section 19(a) above in the courts (instead of arbitration) as set forth below or, in the case of the PRC, in the arbitral forum set forth below:

(i) if the Location is in the United States, this Section 19(i) does not apply;

(ii) if the Location is in the United Kingdom, the courts of England and Wales;

(iii) if the Location is in the PRC, the China International Economic and Trade Arbitration Commission ("CIETAC") in Shanghai. In the event that the Company exercises its discretion to commence proceedings in CIETAC, you hereby also agree to arbitration in CIETAC and not to select any other arbitral forum. In the event of an arbitration conducted in CIETAC, the parties agree that the CIETAC arbitration rules shall apply and shall be deemed to be incorporated by reference into this Section 19, the number of arbitrator(s) shall be one (1), and the language to be used in the arbitral proceedings shall be Chinese;

(iv) if the Location is in Hong Kong, Singapore, Taiwan, India or other jurisdictions (except for the United States, the PRC and the United Kingdom), the courts of Hong Kong.

If the Company exercises the discretion in accordance with this subsection (i), the other provisions of this Section 19 shall not be affected and shall continue to apply, to the extent not in conflict with this subsection (i).

(j) In the event of any claim, dispute, lawsuit, arbitration or other proceeding (collectively "Legal Action") between you on one hand, and the Company and/or any Group Member on the other hand, in relation to any dispute, controversy or claim covered by Section 19(a), you acknowledge and agree that the Company and/or such Group Member are entitled to recover from you all reasonable attorneys' fees, legal costs, investigation costs and other expenses in relation to such Legal Action including but not limited to any appeals thereof, if the Company or such Group Member is the successful or prevailing party in such Legal Action, unless otherwise provided by Applicable Law. Such sum may be deducted from any payment due from any Group Member to

you, if permitted under Applicable Law. Your payment of the Company's and/or any Group Member's attorneys' fees, legal costs and other expenses under this Section 19(j) is in addition to any other relief to which the Company and/or such Group Member may be entitled.

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